IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI, COURT – II

Item No. 202
(CA)-(CAA)-128/ND/2021

IN THE MATTER OF:

Central Railside Warehouse Company Ltd. ... Applicant/Petitioner
with Central Warehousing Corporation

Under Section: 230-232

Order delivered on 03.01.2022

CORAM:
SHRI. ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (J)

SHRI L.N. GUPTA,
HON'BLE MEMBER (T)

PRESENT: Hemlata Rawat Adv. for OL
Adv. Suman Kumar Jha and Adv. Afnaan Siddiqui

ORDER

In the course of hearing, we notice that the present application is filed under Section 230-232 of the Companies Act, 2013 for the Amalgamation and Merger between a Transferor Company and Central Warehousing Corporation (Transferee entity). In terms of Section 232(1) read with Rule 25 of the Companies (Arrangement and Amalgamation) 2016 merger and amalgamation is provided between the Companies incorporated under the Companies Act, 2013 or the previous Act. Therefore, the Applicant is well-advised to convince the Bench on the point how the present application is maintainable.

In the later part of hearing, Ld. Counsel for the RD appears. The Petitioner is directed to serve a copy of the application to the RD's Counsel on her email ID by tomorrow and the RD is directed to assist the Bench on the point as raised above. List the matter on 16th February, 2022.

-Sd-

(L. N. GUPTA)
MEMBER (T)

-Sd-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

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